

TENTATIVE RULINGS

FOR: September 15, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Anthony Kurt Kessler

23PR000181

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on September 15, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Ernesto Olivieri

23PR000185

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on September 15, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In The Matter of The Marie Davis Supplemental Needs Trust

25PR000064

AMENDED PETITION FOR APPROVAL OF GUARDIAN AD LITEM FEES AND COSTS

TENTATIVE RULING: Good cause appearing, and no objection having been filed, the Petition is GRANTED, including fees as prayed.

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In The Matter of Qusaly Aboalrejal

26PR000154

REVIEW HEARING TO CONFIRM FILING OF MC-356 FORM

TENTATIVE RULING: The matter is CONTINUED to October 13, 2026, at 8:30 a.m. in Dept. A to allow Petitioner time to file the “Receipt and Acknowledgement of Order for the Deposit of Money Into Blocked Account (form MC-356)” following the Court’s amended orders, filed September 3, 2026, approving the compromise of claim and to deposit funds in a blocked account. If an MC-356 form is properly on file prior to the next hearing date, the review hearing may be vacated. The Clerk is directed to provide notice.

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Estate of Brian Joseph Kosi

26PR000163

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The matter is CONTINUED to October 13, 2026, at 8:30 a.m. in Dept. B to address the following deficiency: The Petition indicates that Bond is not required for the reasons stated in item 3e (see Pet. § 2(d)(1)), but fails to mark any basis for the excusal from bond in item 3e. The Court notes that, to the extent the basis for excusal is waiver by beneficiaries, decedent’s minor daughter must have a guardian *ad litem* appointed in order to sign any waiver of bond.

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26PR000184

TENTATIVE RULING: The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 15, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

23CV000013

TENTATIVE RULING: The Petition is GRANTED. The Court sets the matter for Status Conference, to confirm purchase of annuities described in the petition, on October 13, 2026, at 8:30 a.m., in Dept. B.

The Court orders that Petitioner file one or more declaration(s) from Petitioner or Petitioner's counsel of record, under penalty of perjury, attesting to the truth of the following facts: (1) that declarant has reviewed the original annuity contract, (2) that the substantive terms of the annuity contract are the same as those set forth in the Petition, and (3) that a true and correct copy of the annuity contract is attached to the declaration. If such proof is filed at least five Court days prior to the hearing, the hearing may be vacated, and no appearance required.

If Petitioner fails to timely comply with the foregoing, the Court will require personal appearance of Petitioner and counsel, at the October 13, 2026, hearing, for purposes of explaining the failure to comply. The Court may issue an Order to Show Cause re: Monetary Sanctions or make other orders as may appear necessary.

26CV000882

TENTATIVE RULING: Petitioner failed to file an Order to Show Cause for Change of Name corresponding to the continued hearing date, as ordered by the Court's June 23, 2026, Minute Order. The Petition is therefore **DENIED WITHOUT PREJUDICE**.

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In The Matter of Nicolas F De Pierola Alvarado

26CV000983

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Petitioner failed to file an Order to Show Cause for Change of Name corresponding to the continued hearing date, as ordered by the Court's July 21, 2026 Minute Order. The Petition is therefore DENIED WITHOUT PREJUDICE.